

HISTORICAL BACKGROUND OF THE INDIAN JUDICIARY

- **Regulating Act, 1773:** Established the **Supreme Court of Judicature** in Calcutta (1774). Later, Supreme Courts were set up in **Madras (1800)** and **Bombay (1823)** under **King George III**.
- **Indian High Courts Act, 1861:** Created High Courts in provinces, abolishing Supreme Courts in **Calcutta, Madras, Bombay** and **Sadar Adalats**. These High Courts were the highest judicial bodies until the **Federal Court of India** was established under the **Government of India Act, 1935** to resolve disputes between provinces and states.
- **Post-Independence:** After independence, existing High Courts for provinces became High Courts for states. The **Seventh Amendment Act of 1956** allowed Parliament to create a **common High Court** for two or more states or union territories.

STRUCTURE OF THE INDIAN JUDICIARY

- **Integrated Judicial System:** India has a unified judicial system where **Central and State laws** are enforced by the same courts. **The Supreme Court** is at the top, followed by **High Courts** and **subordinate courts** like **District Courts**.
- **High Courts:** The **High Court** is the highest court in a state, working under the Supreme Court. Established in **1862** for **Calcutta, Bombay, Madras**, and later **Allahabad (1866)**. High Courts have jurisdiction over their respective states or combined states/union territories. There are currently **25 High Courts** in India; the **Calcutta High Court (1862)** is the oldest. High Courts now have **revenue jurisdiction**, absent before the Constitution.
- **Subordinate Courts:** Each High Court oversees a hierarchy of **subordinate courts**, including District and Sessions Courts.

EVOLUTION OF COLLEGIUM SYSTEM: CONCURRENCE VS. CONSULTATION

- **First Judges case (1982):** SC opined that **consultation** does not mean **concurrence** and it only implies an exchange of views.
- **Second Judges case (1993):** SC reversed its earlier ruling and changed the interpretation of the word **consultation to concurrence**. It ruled that the advice tendered by the Chief Justice of India is binding on the President in the matters of appointment of the judges of the SC. CJI will tender his advice after consulting with two senior-most colleagues.
- **Third Judges case (1998):** SC opined that the consultation process to be adopted by the CJI requires **consultation of plurality judges** (Not CJI alone).
 - CJI should consult a collegium of 4 senior most judges (even if two gave adverse opinions that recommendation cannot be forwarded).
 - The recommendations made by the Chief justice of India without complying with the norms and requirements of the consultation process are not binding on the government.
- **Fourth Judge's case (2015):** NJAC case: The **99th Constitutional Amendment Act of 2014** and the National Judicial Appointments Commission Act of 2014 replaced the collegium system with a new body called the National Judicial Appointments Commission (NJAC).
 - SC declared both the 99th Constitutional Amendment as well as the NJAC Act **unconstitutional** and void on grounds of interference. Consequently, the earlier collegium system became operative again. **[UPSC 2019]**
- **Present Scenario:** The appointment of Supreme Court judges in India involves several key steps:
 1. **Initiation:** CJI initiates the process upon vacancy.
 2. **Collegium Recommendations:** The Collegium (CJI + four senior judges) recommends candidates.
 3. **Consultation:** It consults eligible high court judges or lawyers.
 4. **Government Review:** Recommendations are sent to the government for feedback.
 5. **Presidential Approval:** The President approves appointments, followed by a swearing-in ceremony. **[UPSC 2019]**

SUPREME COURT AND HIGH COURT

Parameters	Supreme Court (Part V: Article 124 to 147)	High Courts (Part VI: Article 214-231)
Basic Facts	- Part of an integrated judicial system, based on the GoI Act, 1935. - Enforces central and state laws. - Inaugurated on January 28, 1950, replacing the Federal Court of India and the British Privy Council as the highest court of appeal.	- The Constitution originally provided for one High Court per state. - The 7th Amendment Act (1956) allows a common High Court for multiple states or Union Territories (UTs). Territorial jurisdiction is co-terminus with the concerned state(s) or UT(s), and Parliament can alter it.
Composition	34 judges (CJI + 33 others). The Supreme Court (Number of Judges) Amendment Act, 2019 raised the number from 31 to 34. (The power to increase the number of judges in the Supreme Court of India is vested in the Parliament.) [UPSC 2014]	- Strength not fixed in the Constitution; at the President's discretion. - Each High Court consists of a Chief Justice and other judges as appointed by the President.
Appointment	- From 1950 to 1973, the senior most judge was appointed CJI, but this was violated in 1973 (A.N. Ray) and 1977 (M.U. Beg). Second Judges Case (1993): Established that only the senior most judge should be appointed as CJI. CJI Appointment: President consults Supreme Court and High Court judges. Other Judges: Appointed by the President after consultation with CJI, SC, and HC judges. [UPSC 2012-13]	Article 217: Chief Justice: President consults CJI and the Governor of the state. Other Judges: Appointed by the President after consulting CJI, Governor, and Chief Justice of the State High Court. - In common High Courts, the President consults the Governors of all concerned states. Third Judges Case: For High Court judges, the CJI must consult a collegium of two senior-most SC judges.
Qualification of Judges	Citizenship: Must be a citizen of India. Judicial Experience: - Must have served as a judge of a High Court for 5 years or - Been an advocate of a High Court for 10 years. Distinguished Jurist: Can be appointed at the President's discretion (not applicable for High Court judges). Age Requirement: No minimum age is prescribed for appointment.	Citizenship: Must be a citizen of India. Judicial Experience: - Must have held a judicial office for 10 years or - Been an advocate of a High Court for 10 years. Distinguished Jurist: No provision for a distinguished jurist in High Court appointments. Age Requirement: No minimum age is prescribed.
Oath or Affirmation	Takes an oath before the President or an appointed representative.	Takes an oath before the Governor or an appointed representative (Article 219).
Tenure	- Serve until 65 years of age. - Resign by writing to the President. - Removal is recommended by Parliament.	- Serve until 62 years of age. - Resign by writing to the President. - Can be removed similarly as Supreme Court judges.

Acting Chief Justice	The President can appoint a judge of the SC as an Acting Chief Justice if: • The CJI's office is vacant. • The CJI is temporarily absent. • The CJI is unable to perform duties (Article 126).	The President can appoint a judge of the HC as an Acting Chief Justice if: • The HC Chief Justice's office is vacant. • The HC Chief Justice is temporarily absent or • Unable to perform duties (Article 223).
Retired Judge	• The Chief Justice of India (CJI) can request a retired Supreme Court judge or a retired High Court judge (qualified for SC) to act as a Supreme Court judge temporarily. • Requires consent from the President and the individual. • Holds all jurisdiction and powers of a Supreme Court judge but is not deemed a judge.	• The Chief Justice of the High Court (CJ) can request a retired High Court judge to act as a High Court judge temporarily. • Requires consent from the President and the individual. • Holds all jurisdiction and powers of that High Court judge but is not deemed a judge (Article 224A).
Independence of the Judiciary	• Appointment: Judges are appointed by the President in consultation with the judiciary. • Security of Tenure: Judges can be removed only as per constitutional procedures. • Service Conditions: Cannot be altered post-appointment, except during financial emergencies. • Expenses Charged on the Consolidated Fund of India. [UPSC 2012] • Post-Retirement Practice: Prohibited from practising in any court. • Contempt of Court: SC has the power to punish for contempt. • Jurisdiction: Cannot be curtailed, but can be extended by Parliament: [UPSC 2014] • Separation of Powers: Judiciary is separated from the executive (A- 50). It thus helps to safeguard the liberty and rights of the people in a democracy. [UPSC 2021]	• Appointment: Judges are appointed by the President in consultation with the CJI and HC Chief Justice. [UPSC 2013] • Security of Tenure: Judges can only be removed through constitutional procedures. • Service Conditions: Cannot be altered, except during a financial emergency. • Expenses: Salaries charged on the State's Consolidated Fund; pensions from the Consolidated Fund of India. • Post-Retirement Practice: Can practise in the SC or other HCs. • Contempt of Court: HC can punish for contempt. • Jurisdiction: Can be altered by Parliament or state legislature. • Separation of Powers: Judiciary is independent of the executive (A- 50).
Jurisdiction and Powers	• The SC has extensive jurisdiction. SC is the final interpreter and guardian of the Constitution and also the guarantor of the fundamental rights of the citizens. [UPSC 2015, 2019] • It acts as both a federal court and a final appellate court. Described as having more powers than any other Supreme Court worldwide.	• Governed by constitutional provisions; Letters Patent, various Acts of Parliament, state laws, and criminal and civil procedure codes.
Writ Jurisdiction	• Writs: Includes habeas corpus, mandamus, prohibition, quo warranto, and certiorari. • Scope: Aggrieved individuals can approach the Supreme Court under Article 32 for enforcement of Fundamental Rights. The Court's writ jurisdiction is original but shared with High Courts, and Parliament can extend its scope.	• Wider jurisdiction than the SC: can issue writs for both Fundamental Rights and other legal rights. (Article 226) • Can issue writs beyond its territorial jurisdiction if the cause of action arises within its territory. • Concurrent with SC's writ jurisdiction (Chandra Kumar case, 1997).

Court of Record	- The Supreme Court acts as a court of record, where its judgments and proceedings are recorded for perpetual memory and legal precedent. (Article 129) - These records have evidentiary value and cannot be questioned by any other court.	- Judgments and proceedings are recorded for evidentiary value and cannot be questioned. (Article 215) - High Court has power to review and correct its own judgement, hence bound by its previous decision, but not on the lines as Supreme Court does. [UPSC 2021] - Has the power to punish for contempt.
Contempt of Court	- Governed by the Contempt of Court Act, 1971, which outlines procedures for investigation and punishment of contempt. It was based on the recommendations made by H.N. Sanyal committee. - Expression 'contempt of court' has not been defined by the Constitution. [UPSC 2022] Civil Contempt: Wilful disobedience to court orders or judgments. Criminal Contempt: Publication or actions that scandalise or lower the authority of the court, or interfere with justice. - Actions not amounting to contempt include: - Innocent publication. - Fair reports of judicial proceedings. - Reasonable criticism of judicial acts. - Penalties for contempt include simple imprisonment for up to six months, or fines up to ₹2000. - Proceedings for contempt must be initiated within one year of the alleged contempt. - The Act does not apply to Nyaya Panchayats or similar village courts.	
Salaries and Allowances	Determination: Salaries fixed by Parliament; cannot be reduced post-appointment, except during financial emergencies (Article 360). Pension: Retired SC & HC judges receive 50% of their last drawn salary as pension. Supreme Court: Salaries charged on Consolidated Fund of India(Article 125). High Court: Salaries charged on Consolidated Fund of State, pensions charged on Consolidated Fund of India (Art. 221).	
Removal of Judges	Grounds for Removal: Proved misbehaviour or incapacity. Procedure: Governed by the Judges Enquiry Act (1968); requires Parliament's recommendation. [UPSC 2019] Parliamentary Support: Needs a special majority in both Houses. Impeachment: No Supreme Court or High Court judges have been impeached. Judges Enquiry Act, 1968 Removal Motion: - Must be signed by 100 members (Lok Sabha) or 50 members (Rajya Sabha). - The Speaker/Chairman may admit or reject the motion. Inquiry: If admitted, a three-member committee investigates charges. Outcome: If found guilty, the motion goes to the House for consideration and must pass with a special majority. The President issues the final removal order.	
Appellate Jurisdiction	Supreme Court: Constitutional matters: Under Article 132, appeals to the Supreme Court are allowed against High Court judgments involving substantial constitutional questions. - Articles 133 and 134 govern appeals in civil and criminal matters, including death sentences. Appeals are limited when an acquittal is confirmed, but HC certification enables SC appeals. - No right to appeal if an acquittal is confirmed. High Court: HC has Wider appellate jurisdiction than its original jurisdiction and applicable in both civil and criminal matters against judgements of sub-ordinate courts in its territorial jurisdiction. 1st appeal in cases involving questions of law and facts. And 2nd appeal in cases involving questions of laws only.	

Original Jurisdiction	Supreme Court: Original and exclusive jurisdiction(Art 131) in disputes between: [UPSC 2012] • States and the Centre. [UPSC 2014] • States and other states. [UPSC 2012] • Centre and a state vs. another state. • Political questions are generally avoided. • Disputes must involve a legal right (either law or fact). • Private citizens cannot bring suits against the Centre or a state. • Exclusions: Pre-Constitutional treaties or agreements, Inter-state water disputes, Financial adjustments or pensions between Centre and states, Commercial disputes between the Centre and states, Recovery of damages. • First suit under SC's original jurisdiction: West Bengal vs. Centre (1961). High Court: Original jurisdiction in: • Election disputes for members of parliament and state legislatures. • Revenue matters. • Enforcement of Fundamental Rights. • Cases transferred from subordinate courts involving constitutional interpretation. • Original civil jurisdiction in high-value cases (Calcutta, Bombay, Madras, and Delhi HCs). • Narrower than SC's jurisdiction. Note: Original criminal jurisdiction of Calcutta, Bombay, and Madras HCs was abolished in 1973.
-----------------------	--

Note: Supreme court is custodian of the Constitution of India.

[UPSC 2015]

ADDITIONAL PROVISIONS RELATED TO SUPREME COURT

- **Ad Hoc Judge (Article 127)**
 - **Appointment:** CJI can appoint a High Court judge as an Ad Hoc judge when there is a lack of quorum. Requires consultation with the Chief Justice of the concerned High Court and the President's consent.
 - **Jurisdiction:** Ad hoc judges possess the same powers and privileges as Supreme Court judges.
 - **Qualifications:** Must be qualified for appointment as a Supreme Court judge.
- **Seat of Supreme Court (Article 130)**
 - **Location:** The Supreme Court is constitutionally located in Delhi.
 - **Alternative Seats:** The CJI can appoint another location as the Supreme Court's seat with Presidential approval (optional).
- **Procedure of the Court**
 - **Rule-Making:** The Supreme Court, with Presidential approval, can regulate its practice and procedure.
 - **Bench Composition:** Constitutional cases or Presidential references are decided by a bench of at least five judges; other cases can be decided by single or division benches.
 - **Judgement Delivery:** Majority voting is required, with provisions for dissenting opinions.
- **Appeal by Special Leave (Article 136)**
 - **Special Leave:** Grants special leave to appeal from judgments of any court or tribunal, except court martial.
 - **Key Features:**
 - ◆ Discretionary, not a right.
 - ◆ Applicable to final or interlocutory judgments.
 - ◆ Covers various matters (constitutional, civil, criminal, etc.).
 - ◆ Used sparingly in exceptional cases.
- **Advisory Jurisdiction (Article 143)**
 - The President can seek Supreme Court's opinion on:
 - (a) any question of law/fact of public importance and
 - (b) on disputes arising from from pre- constitutional treaties/agreement/sanad etc.

Note: In (a) SC may/may not give it's opinion.
In (b) SC bound to give it's opinion.

 - **Nature of Opinion:** Advisory, not binding; the President may choose whether to follow it.
 - **Reference Made:** Fifteen references made by the President by 2024. **Example** 2G spectrum case verdict. (2012)
- **Interpretation of Constitution (Article 147)**
 - **Role:** The Supreme Court serves as the ultimate interpreter of the Constitution.
 - **Guiding Doctrines:** Includes severability, waiver, eclipse, pith and substance, etc.

Key Doctrines of Constitutional Interpretation:

- **Doctrine of Severability:** Offending provisions can be voided without invalidating the **entire statute**.
- **Doctrine of Waiver:** Rights or privileges can be **intentionally given up**.
- **Doctrine of Eclipse:** Laws inconsistent with **fundamental rights** are overshadowed, not invalid.
- **Doctrine of Territorial Nexus:** State laws apply only within the state unless a sufficient **nexus** exists.
- **Doctrine of Pith and Substance:** Validity of legislation depends on its **substance** within jurisdiction.
- **Doctrine of Colourable Legislation:** Prohibitions apply **indirectly** to prevent misuse of authority.
- **Doctrine of Incidental and Ancillary Powers:** Enables laws for public benefit not explicitly stated.
- **Doctrine of Precedent:** Prior court decisions must be followed within **limits**.
- **Doctrine of Occupied Field:** State laws obstructing parliamentary laws are **repugnant**.
- **Doctrine of Prospective Overruling:** Decisions apply **only in the future**.
- **Doctrine of Harmonious Construction:** Interpret provisions together to resolve **inconsistencies**.
- **Doctrine of Liberal Interpretation:** The Constitution should be read **broadly**.

● Other Powers of the Supreme Court

- **Election Disputes:** Decides disputes regarding the election of the President and Vice-President (original, exclusive, and final authority).
- **UPSC Conduct:** Enquires into the conduct of UPSC members based on Presidential reference; advice is binding.
- **Self-Correction:** Power to review its own judgments.
- **Case Management:** Can withdraw cases from High Courts or transfer cases between High Courts.
- **Binding Authority:** Supreme Court's law and judgments are binding on all Indian courts.
- **Parliamentary Power:** Parliament can enlarge the Supreme Court's jurisdiction regarding Union matters.

● Articles Related to Jurisdiction

- **Article 141:** Law declared by the Supreme Court is binding on all courts.
- **Article 142:** Enforcement of Supreme Court decrees and orders.

Article 142 empowers the **Supreme Court (SC)** to pass orders or decrees necessary for ensuring complete justice in any pending case. This provision is often associated with **judicial activism**. For instance, in the **Union Carbide Case (1989)** related to the **Bhopal Gas Tragedy**, the SC invoked Article 142 to override parliamentary laws and award compensation to victims.(UPSC 2019)

Types of Advocates under the Advocates Act, 1961

1. Senior Advocates

- **Designation:** Senior Advocates are designated by the **Supreme Court (SC)** or **High Courts (HC)** based on merit, including their **standing at the Bar**, **special knowledge**, or **experience** in law.
- **Eligibility:** Retired Chief Justices or Judges of HCs can also be considered.
- **Practice Rules:** They must appear in the SC alongside an **Advocate-on-Record**.
- **Designation Process:** Governed by the **Supreme Court Rules, 2013**. A **Permanent Committee**, chaired by the **Chief Justice of India (CJI)**, handles senior advocate designations. The committee includes CJI (Chairperson), Two senior-most SC judges, **Attorney General**, & A Bar member nominated by the Chairperson.

2. Advocate-on-Record (AoR)

- **Role:** Only **Advocates-on-Record** can file appearances and act for a party in the SC.
- **Eligibility:** Advocates with 7 years of standing can register as AoR after passing the **AoR examination**.
- **Examination:** Introduced in **1959** and conducted by the SC under the supervision of the Secretary of the Board of Examiners, appointed by the CJI.
- **Training:** Advocates must undergo one year of continuous training under an AoR with at least 10 years of experience.

3. Other Advocates

- **Eligibility:** Advocates registered with any **State Bar Council** under the **Advocates Act, 1961**.
- **Limitations:** They cannot appear in the SC unless instructed by an AoR or permitted by the Court.
- The **Advocates Act, 1961** recognizes **Advocates** as the only class of persons entitled to practice law in India. This includes **corporate lawyers** and **patent attorneys**, who are also recognized as advocates with no restriction on their recognition.(UPSC 2022)

ADDITIONAL PROVISIONS RELATED TO HIGH COURTS

● Transfer of Judges (Article 222)

- **Presidential Power:** The President can transfer judges of High Courts after consulting the CJI.
- **Compensatory Allowance:** Transferred judges receive an allowance determined by Parliament.
- **Judicial Review:** Necessary to prevent arbitrariness in transfers; only the transferred judge can challenge the transfer.
- **Third Judges Case (1998):** CJI must consult a collegium of senior judges and the Chief Justices of the relevant High Courts.

- **Additional and Acting Judges (Article 224)**
 - **Appointment:** The President can appoint additional judges for up to two years during temporary increases in workload.
 - **Age Limit:** Cannot hold office after reaching 62 years.
- **Supervisory Jurisdiction (Article 227)**
 - **Scope:** Superintendence over all state courts and tribunals, excluding military courts.
 - **Types:** Includes both administrative and judicial superintendence; can act suo-motu.
 - **Usage:** Applied in extraordinary cases for excess jurisdiction, natural justice violations, and manifest injustice.
- **Control Over Subordinate Courts (Article 227)**
 - **Governor's Consultation:** Consulted in the appointment and promotion of district judges and judicial service personnel.
 - **Substantial Questions:** Can withdraw cases from subordinate courts involving substantial constitutional questions.
 - **Binding Authority:** Supreme Court's law is binding on all subordinate courts within its jurisdiction.

Common Jurisdiction of High Court with two or more States/UTs

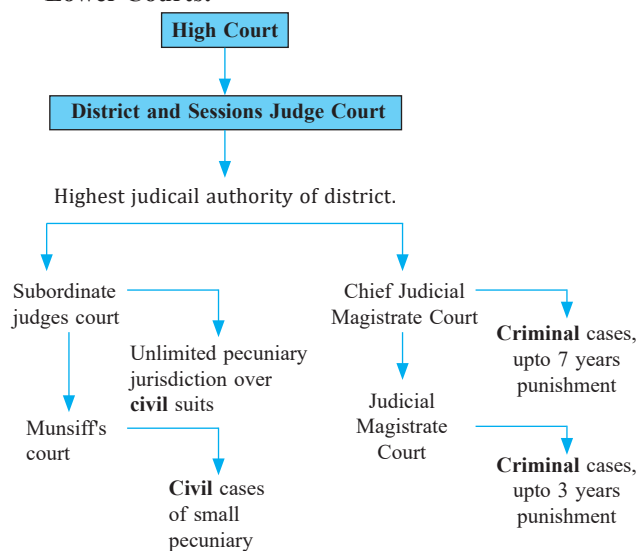
- **Bombay:** Maharashtra, Goa, Dadra and Nagar Haveli, Daman and Diu
- **Guwahati:** Assam, Nagaland, Mizoram and Arunachal Pradesh
- **Punjab and Haryana:** Punjab, Haryana, Chandigarh
- **Calcutta:** West Bengal, Andaman and Nicobar Islands
- **Madras:** Tamil Nadu, Puducherry
- **Kerala:** Kerala, Lakshadweep

SUBORDINATE COURTS (PART VI: ARTICLE 233-237)

Provisions Related to Subordinate Courts

- **Regulatory Framework:** Articles 233-237 in Part VI ensure the **independence** and **organisation** of subordinate courts.
- **District Judges (Article 233):**
 - Appointed by the Governor with **High Court** consultation.
 - Must meet qualifications:
 - ◆ Not in service of the Union/State.
 - ◆ Advocate/pleader for **7 years**.
 - ◆ High Court recommendation.
- **Other Judicial Appointments (Article 234):** Appointed by **Governor** as per rules after consulting **State Public Service Commission** and **High Court**.

- **Control over Subordinate Courts (Article 235):** **High Court** manages district and lower courts, overseeing transfers, promotions, and leave of officers below district judge rank.
- **Interpretation of 'District Judge (Article 236)':** Includes city civil court judges, sessions judges, and chief magistrates. **Judicial Service** includes posts below district judges.
- **Judicial Structure and Jurisdiction:** Varies by state with three tiers of courts below the High Court. **District Judges** (civil) and **Sessions Judges** (criminal) hold appellate and original jurisdiction.
- **Powers:**
 - **District Judges:** Handle civil and administrative matters; appeals go to the High Court.
 - **Sessions Judges:** Can impose **life imprisonment** or **capital punishment**, subject to High Court confirmation.
- **Lower Courts:**



- **Metropolitan and Other Courts**
 - **City Civil Courts:** Handle civil cases in metropolitan areas.
 - **Metropolitan Magistrates' Courts:** Deal with criminal cases.
 - **Small Cause Courts:** Summary decisions on minor civil cases (High Court has revision power).
 - **Panchayat Courts:** Handle petty civil and criminal cases, known by various local names.

Subordinate courts form the backbone of India's justice system, ensuring grassroots access to legal recourse. Despite challenges, they play a crucial role in judicial administration.

ALTERNATE DISPUTE RESOLUTION (ADR)

- **Definition:** ADR is a structured, non-judicial process dispute **redressal mechanism** that helps parties resolve grievances without litigation, using a **neutral third party** to facilitate agreement.

• Methods of ADR

- **Arbitration:** A neutral arbitrator makes binding decisions on disputes. Governed by the **Arbitration and Conciliation Act, 1996**, it is used for both domestic and international disputes.
- **Conciliation:** A neutral party helps disputants reach an agreement amicably. It follows the **UNCITRAL Conciliation Rules (1980)** and is commonly used in commercial and civil disputes.
- **Mediation:** Involves a facilitator assisting parties in negotiating a settlement. It is **non-binding** and mandated by laws such as the Hindu Marriage Act, often used in family and matrimonial disputes.
- **Negotiation:** Parties directly discuss and resolve disputes, with a neutral party having a limited role. It is effective for family, industrial, and petty disputes.

NATIONAL LEGAL SERVICES AUTHORITY (NALSA)

- **Background:** Established under the **Legal Services Authorities Act (1987)**, effective from **November 9, 1995**, to provide **free legal services** for the weaker sections.
- **Objectives:** Its objective is to provide free and competent legal services to the weaker section of the society on the basis of equal opportunity. It issues guidelines for the State Legal Services Authorities to implement the legal programmes and schemes throughout the country. [UPSC 2013]
- **Constitutional Provisions**
 - **Article 39A:** Ensures free legal aid for the poor.
 - **Articles 14 & 22(1):** Mandate state responsibility for equality before law and equal opportunity.
- **Legal Service Institutions**
 - **State Legal Services Authorities** oversee district and taluka legal services, conducting Lok Adalats and awareness camps.
 - **The Supreme Court Legal Services Committee** manages legal services related to the Supreme Court.
- **Eligibility for Free Legal Services:** Women, children, SC/ST members, victims of disasters, disabled persons, and low-income individuals ($\leq ₹1$ lakh; ₹1.25 lakh for Supreme Court). [UPSC 2020]
- **Services Offered:** Coverage of court fees, lawyer services, certified document copies, and appeal preparation.
- **Initiatives**
 - **Legal Service Mobile App:** Facilitates access to justice.
 - **DISHA Scheme:** Aims for holistic access to justice (2021-26).
 - **Nyaya Bandhu** (Pro Bono Legal Service)
- **Roles and Functions of NALSA:** Set policies, monitor implementation, organise Lok Adalats, and conduct legal literacy programs.
- Coordinate with government and non-government agencies for effective service delivery.

LOK ADALAT

- **Definition:** Lok Adalat, or **people's court**, serves as an **Alternative Dispute Resolution (ADR)** mechanism aimed at resolving disputes outside traditional court settings. It promotes **informal, affordable, and expedient** resolutions, reflecting **Gandhian principles**.
- **Statutory Status:** Established under the **Legal Services Authority Act, 1987**, it provides a structured framework for dispute resolution.
- **Historical Context:** The first Lok Adalat was held in **Gujarat in 1982**, successfully settling various disputes, leading to its expansion across India.
- **Composition:** Consists of such number of **serving or retired judicial officers** and **other persons** of the area as may be specified by the agency. Generally, a Lok Adalat consists of a judicial officer as the chairman and a lawyer (advocate) and a social worker as members

Types of Lok Adalat

1. **National Lok Adalats:** Conducted regularly, these cover all courts nationwide on designated days since **2015**.
2. **State Lok Adalats:** Also known as **Regular Lok Adalats**, these can be categorised into:
 - **Continuous Lok Adalat:** Operates for a set number of days for ongoing cases.
 - **Daily Lok Adalat:** Held every day to address disputes.
 - **Mobile Lok Adalat:** Utilises multi-utility vans to reach remote areas, resolving petty cases and raising legal awareness.
 - **Mega Lok Adalat:** Organised statewide on a single day across all courts.
3. **Permanent Lok Adalat**
 - **Established:** Under the **Legal Services Authorities Act, 1987**, amended in **2002**.
 - **Purpose:** Resolves disputes related to **public utility services**.
 - **Composition:** **Chairman:** A serving/retired **district judge** or higher judicial officer.
 - **Two members:** Experts in **public utility services**.
- **Jurisdiction:** Covers services like **transport, postal, telegraph, electricity, sanitation, hospitals, and insurance**. **Pecuniary limit:** Initially **₹10 lakhs**, raised to **₹1 crore** in **2015**. **No jurisdiction over non-compoundable offences**.
- **Application:** Once a case is filed, parties cannot approach other courts.
- **Settlement:** Tries to **formulate settlement terms**. If no agreement, resolves the dispute on **merits**.
- **Award:** The **award is final and binding**, with **no appeal** allowed.

GRAM NYAYALAYAS

- **Objective:** To provide **access to justice** at the grassroots level, ensuring speedy and affordable dispute resolution in rural areas.
- **Establishment:** For every **Panchayat at the intermediate level** or a group of contiguous Panchayats. **Headquarters are located** at the intermediate Panchayat, but the court travels to villages.
- **Composition:** Presiding officer (**Nyayadhikari**): A **Judicial Magistrate of the first class**, appointed by the **State Government** in consultation with the **High Court**. Adequate representation from **SC/ST, women**, and other communities is mandated.
- **Jurisdiction:** **Criminal and Civil** jurisdiction over cases specified in the **First and Second Schedule**. Can try cases related to both **criminal offenses** and **civil disputes** using **summary procedure**.
- **Conciliation:** The court aims to resolve disputes through **conciliation** with the help of **appointed conciliators** [UPSC 2016]. Not bound by the **Indian Evidence Act**, but guided by principles of **natural justice**.
- **Appeals:** **Criminal cases:** Appeals go to the **Sessions Court**, which must dispose of them within **6 months**. **Civil cases:** Appeals go to the **District Court**, with the same **6-month** disposal timeline. [UPSC 2016]
- **Salary:** Nyayadhikaris receive the same salary and allowances as First Class Judicial Magistrates.
- **Language:** Judgements and proceedings are conducted in the **local state language**.
- **Awards:** The decision of the Gram Nyayalaya is treated as a **decree** and follows **summary procedures** for execution.

COMMERCIAL COURTS

- **Purpose:** Establish specialised courts for quick resolution of **commercial disputes**.
- **Commercial Courts:** Set up by **State Governments** at the **district level** for disputes above **₹3 lakh**.
- **Commercial Appellate Courts:** Handle appeals from **lower commercial courts**, established at the **District Judge level**.
- **High Court:**
 - **Commercial Division:** For commercial disputes in High Courts with original jurisdiction.
 - **Commercial Appellate Division:** Hears appeals from **Commercial Courts/Divisions**.

TRIBUNALS IN INDIA

Tribunals: Judicial or quasi-judicial bodies established by law to resolve specific disputes efficiently, often with subject matter expertise.

Constitutional Provisions

- **42nd Amendment Act, 1976:** Introduced Part XIV-A on **Tribunals** in the Constitution, comprising:
- **Article 323A:** Pertains to administrative tribunals.
- **Article 323B:** Covers tribunals for other matters like taxation.

Differences Between Articles 323A and 323B

Article 323A	Article 323B
Establishes tribunals for public service	Establishes tribunals for various matters
Created solely by Parliament	Both Parliament and State Legislatures
No hierarchy of tribunals	Hierarchy may be established

Salient Features

- **Expertise:** Composed of members with specialised knowledge.
- **Flexible Procedures:** Not bound by the Civil Procedure Code (CPC).
- **Natural Justice:** Adhere to fair hearing principles.
- **Quasi-Judicial Powers:** Can hear evidence, examine witnesses, and make binding decisions.
- **Expedited Process:** Faster resolution compared to traditional courts.
- **Appellate Authority:** Tribunal decisions can be appealed to higher courts.
- **Functions:** Resolve disputes and determine rights. Make administrative decisions and review existing ones. Must operate independently of the executive.

Types of Tribunals

Administrative Tribunals (Article 323A)

1. **Central Administrative Tribunal (CAT):**

Established: 1985, under the Administrative Tribunals Act, 1985. **Principal Bench** in Delhi, with additional benches in various states.

 - ◆ **Jurisdiction:** Covers **all-India services**, **Central civil services**, and **civilian employees of defence services**.
 - ◆ **Excludes:** Members of the defence forces, officers of the Supreme Court, and Parliament's secretarial staff.
 - ◆ **Structure:** Multi-member body: 69 Hon'ble Members in various Benches of the Tribunal out of which 34 are Judicial Members and 35 are Administrative Members.
 - ◆ **Appointment:** Made by the President, based on recommendations from a **Supreme Court Judge-led committee** and approved by the **Appointments Committee of the Cabinet**.
 - ◆ **Term:** Chairman - 5 years or until 65 years of age; Members - 5 years or until 62 years of age.
 - ◆ **Procedure:** Follows **natural justice** principles, not bound by the Civil Procedure Code. A nominal **₹50 fee** is required for application, and individuals can appear either in person or via a lawyer.



- ◆ **Appeals:** Initially, appeals could only be made to the **Supreme Court**. **L. Chandra Kumar Case (1997):** High Courts regained jurisdiction, and appeals must first be made to the **concerned High Court** before approaching the Supreme Court.

2. State Administrative Tribunals (SATs):

Established: Based on state government requests under the Administrative Tribunals Act of 1985.

- ◆ **Jurisdiction:** Recruitment and service matters of state government employees.
- ◆ **Appointment:** Chairman and members are appointed by the **President** after consulting the state's **Governor**.
- ◆ **States with SATs:** Andhra Pradesh, Odisha, Karnataka, Maharashtra, West Bengal, Kerala.
- ◆ **Abolished SATs:** Madhya Pradesh, Tamil Nadu, Himachal Pradesh (though Tamil Nadu and Himachal Pradesh have requested re-establishment).

3. Joint Administrative Tribunals (JATs)

- ◆ **Provision:** For two or more states under the Administrative Tribunals Act, 1985.
- ◆ **Appointment:** Chairman and members appointed by the **President**, with consultation from Governors of the concerned states.

• Tribunals for Other Matters (Article 323B)

- **Authority:** Both Parliament and State Legislatures can establish tribunals for adjudication in specific areas.
- **Areas:** Taxation, Foreign exchange, import/export, Industrial and labour disputes, Land reforms, Urban property ceiling, Elections (to Parliament and State Legislatures), Foodstuffs & Rent and tenancy rights.
- **Examples:** NGT, National Company Law Tribunal etc.

Comparison: Court of Law Vs. Tribunal

Court of Law	Tribunal
Part of the traditional judicial system	Statutory agency with judicial powers
Judges are independent of the executive	Members' tenure is controlled by the executive
Can assess the validity of legislation	Cannot assess legislative vires
Bound by rules of evidence and procedure	Follows principles of natural justice
Presiding officers trained in law	Members may lack formal legal training
Decisions based on objective evidence	Decisions can be subjective, influenced by policy

Tribunal Reforms Act, 2021

- **Objective:** Streamlines and rationalises the functioning of various tribunals to improve efficiency and reduce costs.
- **Finance Act 2017:** Merged several tribunals based on sectors. Empowered the **Central Government** to regulate search and selection committees.
- **Selection Committees:** Chairperson and members selected based on **Search-cum-Selection Committee** recommendations. **State tribunals** have separate selection panels. Government must act within **3 months** on recommendations.
- **Eligibility and Tenure:** 4 years of tenure with **Maximum Age** 70 years for Chairperson, 67 years for members & **Minimum Age** 50 years for appointments.
- **Uniform Pay:** Ensures **uniform compensation** and rules for search and selection across tribunals.
- **Removal of Chairperson/Members:** Grounds for removal include: Insolvency, moral turpitude, incapacity, conflict of interest, or misuse of position.
- **Compensation:** Chairpersons and members of dissolved tribunals receive **3 months' pay and allowances** for premature termination.

JUDICIAL REVIEW, JUDICIAL ACTIVISM AND JUDICIAL OVERREACH

- **JUDICIAL REVIEW:** Though the phrase '**Judicial Review**' has **nowhere** been **used** in the **Constitution**, But there are various provisions from several Articles which explicitly confer the power of judicial review on the Supreme Court and the High Courts, like in Articles 13, 32, 131-136, 143, 226, 227, etc.
- Judicial Review the power of the Judiciary to pronounce upon the constitutionality of laws and executive orders. **[UPSC 2017]**
- **JUDICIAL ACTIVISM:** The concept of judicial activism originated and developed in the USA. This term was **first** coined in 1947 by **Arthur Schlesinger Jr.**, an American historian and educator. In India, the doctrine of judicial activism was introduced in the mid-1970s. **Justice V.R. Krishna Iyer, Justice P.N. Bhagwati, Justice O. Chinnappa Reddy** and **Justice D.A. Desai** laid the foundations of judicial activism in the country.
- Other related concepts include Judicial Overreach & Judicial Restraint. The table below presents the basic differences among Judicial Review, Judicial Activism, Judicial Overreach & Judicial Restraint.

Aspect	Judicial Review	Judicial Activism	Judicial Restraint	Judicial Overreach
Definition	Process of reviewing laws to ensure they align with the Constitution.	Interpretation of the Constitution to address contemporary issues.	Judges avoid striking down laws unless there is a clear violation	Judiciary encroaches into executive or legislative domains.
Goals	Ensures laws conform to Fundamental Rights and the Constitution.	Addresses societal needs and gaps left by the other branches of government.	Limits judicial interference in policy matters.	Attempts to compensate for failures of the executive/legislature.
Intent	Validates laws based on constitutional principles.	To promote necessary societal changes, sometimes without constitutional backing.	Preserves the separation of powers.	Oversteps or intruding into executive/legislative functions.
Power	Protect and enforce FRs by invalidating unconstitutional laws.	Act when other constitutional bodies fail, often through mechanisms like PILs or suo-motu actions.	Maintain judicial humility, intervening only in constitutional cases.	Often infringing upon the domain of the executive or legislature.
Examples	Striking down Section 66A of the IT Act for violating Fundamental Rights.	Use of PILs, suo-motu cases, and creation of new doctrines without direct constitutional backing.	Upholding laws unless they clearly violate constitutional provisions	Liquor ban near highways, censorship of films like Jolly LLB II.
Impact	Ensures the rule of law and maintains constitutional supremacy.	Promotes social justice	Respects the separation of powers.	Undermines the doctrine of separation of powers.

Key Supreme Court Cases Judicial Review

- **Golaknath v. State of Punjab (1967):** Ruled **Parliament** cannot amend **Fundamental Rights**.
- **24th Amendment:** Allowed amendments to any part of the Constitution.
- **Kesavananda Bharati v. State of Kerala (1973):** Established limitations on amending power; **basic structure** must be preserved.
- **I.R. Coelho Case (2007):** Affirmed **judicial review** as a **basic feature**; laws added to the **Ninth Schedule** after **April 24, 1973** can be challenged.

PUBLIC INTEREST LITIGATION (PIL)

- Also known as **Social Action Litigation (SAL)**, **Social Interest Litigation (SIL)**, and **Class Action Litigation (CAL)**. It is Legal action initiated for **public interest**, addressing issues that affect **legal rights** and **liabilities** of individuals.
- **Origin:** Developed in the **USA** in the 1960s to represent underrepresented groups; introduced in **India** in the **1980s** through **judicial activism** by the Supreme Court, pioneered by **Justices V.R. Krishna Iyer** and **P.N. Bhagwati**.
- **Features:** Public interest litigation (PIL) ensures justice for the poor, focusing on public interest rather than individual rights. It addresses rights violations of disadvantaged groups, actively enforcing public duty with flexibility not found in traditional litigation.

- **Scope of PIL:** Addresses issues such as bonded labour, neglected children, police harassment, atrocities on women, environmental pollution, food adulteration, and more.
- **Exclusions from PIL:** Does not entertain matters related to:
 - **Landlord-tenant** disputes.
 - **Service matters** (e.g., pension, gratuity).
 - Complaints against **government departments**.
 - Admissions to **educational institutions**.
 - Requests for **early hearings** in pending cases.
- **Principles of PIL**
 - **Constitutional Basis:** Can be entertained under **Articles 32 and 226**.
 - **Relaxed Procedures:** Courts may relax procedural laws and the rule of **locus standi**.
 - **No State Objection:** State cannot question maintainability of the petition.
 - **Private Law Limits:** Private disputes generally not permitted as PILs.
 - **Investigative Bodies:** Courts may appoint commissions to investigate allegations.
- **Who Can File a PIL?**
 - Any citizen can file a PIL:
 - Under **Article 32** in the **Supreme Court**.
 - Under **Article 226** in the **High Court**.

- **Filing Against:** Can be filed against **State/Central Governments** and **Municipal Authorities**, not private parties.

Important Judgments Related to PIL

- **Bandhua Mukti Morcha vs. Union of India (1983):** Addressed exploitation of **bonded labourers**; ordered their release and compensation.
- **MC Mehta vs. Union of India (1987):** First PIL on environmental pollution; established **absolute liability** principle.
- **People's Union for Civil Liberties vs. Union of India (1997):** Included **right to legal aid** and **human dignity**.
- **Vishaka & Others vs. State of Rajasthan (1997):** Established guidelines against **sexual harassment** of working women, leading to relevant legislation.

Difference between Indian, American & British Judiciary

Parameter	Indian Judiciary	American Judiciary	British Judiciary
Judicial Structure	Single & integrated system	Double system (Federal and State)	Unitary system
Legal System	Constitution & Common Law	Constitution & Common Law	Common Law & Constitutional Conventions
Original Jurisdiction	Confined to federal cases	Federal cases (maritime & ambassadorial)	Not explicitly defined
Appellate Jurisdiction	Constitutional, civil & criminal cases	Primarily constitutional cases	Various civil & criminal cases
Advisory Jurisdiction	Yes	No	No (interprets law in presented cases)
Discretion	Special leave to appeal	Follows rigid structure	Crown has discretion over appointments
Judicial Review	Limited scope (ensures adherence to Constitution)	Wide scope (can declare laws unconstitutional)	Limited (focuses on statutory interpretation)
Jurisdiction and Powers	Adaptable by Parliament	Limited by Constitution	Operates within parliamentary sovereignty
Defends Rights of Citizens	"Procedure established by law"	"Due process of law"	Statutes & common law principles
Judicial Independence	Ensured by Constitution	Highly independent (lifetime appointments)	Traditionally independent (influenced by Parliament)
Appointment of Judges	President after judicial consultation	President with Senate approval	Crown (on Prime Minister's or Lord Chancellor's advice)
Tenure of Judges	Varies (Supreme Court: 65 years, High Courts: 62 years)	Lifetime unless impeached	Retire at age 70
Role of Legislature	Can overturn judicial decisions with amendments	Can pass laws, subject to judicial review	Can override judicial decisions
Legal Responsibility of Ministers	Collective & individual accountability (no legal)	No legal accountability (unless violating law)	Legal responsibility (accountable in court)

